

JUN 23 2025

76135343

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

Darrell Nguyen (SBN: 228959)
darrell.nguyen@wilsonelser.com
John Podesta (SBN: 154706)
john.podesta@wilsonelser.com
WILSON, ELSE, MOSKOWITZ
EDELMAN & DICKER LLP
655 Montgomery Street, Suite 900
San Francisco, Ca 94111
Telephone: (415) 433-0990
Facsimile: (415) 434-1370

Attorneys for the Defendants'
SF MULTIFAMILY III PROPERTY OWNER LLC,;
BRICK AND TIMBER, INC.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

TANNER PIKOP

Plaintiff,

vs.

SF MULTIFAMILY POOLS 2-3 (B) OWNER
LLC, SF MULTIFAMILY III PROPERTY
OWNER LLC; BRICK AND TIMBER, INC.,
aka BRICK + TIMBER, INC., a California
Corporation, MISSION ROCK RESIDENTIAL
CALIFORNIA, Inc. and DOES 1 through 50,
inclusive;

Defendants.

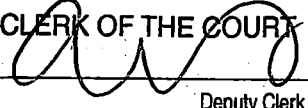
Case No.: CGC-24-620191

STIPULATION AND ~~PROPOSED~~
ORDER RE DISMISSAL

Action filed: December 2, 2024
Trial Date: None Set

Plaintiff Tanner Pikop and Defendants SF Multifamily III Property Owner LLC and Brick and
Timber, Inc. (collectively, the "Stipulating Defendants"), by and through their respective counsel of
record, hereby enter into this stipulation for the purpose of narrowing the issues in dispute and
avoiding the time and expense associated with anticipated law and motion practice, and state as
follows:

///

FILED
San Francisco County Superior Court
JUL 09 2025
CLERK OF THE COURT
BY: 
Deputy Clerk

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 0
- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 0
- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8

Whereas, On March 28, 2025, SF Multifamily III Property Owner LLC and Brick and Timber, Inc. filed a declaration pursuant to Code of Civil Procedure § 430.41(a)(2) for an automatic 30-day extension of time to respond to the Complaint.

STIPULATION

Plaintiff shall dismiss without prejudice the following causes of action as against SF Multifamily III Property Owner LLC and Brick and Timber, Inc.:

Plaintiff shall retain and may continue to prosecute the Fourth Cause of Action for Breach of the Implied Warranty of Habitability; Fifth Cause of Action: Breach of the Statutory Warranty of Habitability; and the Eleventh Cause of Action for Breach of Contract as to the Stipulating Defendants.

Each party shall bear its own attorneys' fees and costs with respect to the dismissed causes of action and the dismissed claim for punitive damages.

1 In light of this stipulation, SF Multifamily III Property Owner LLC and Brick and Timber,
2 Inc. shall file their Answer to the remaining causes of action within fourteen (14) days after notice of
3 entry of this Order, notwithstanding the current May 7, 2025 deadline.

4 This Stipulation may be executed in counterparts and by electronic signature, each of which
5 shall be deemed an original, and all of which together shall constitute one and the same document.

6 **IT IS SO STIPULATED.**

7
8 DATED: April 23, 2025

LIFSCHITZ LAW FIRM

9
10 By: 

Eric L. Lifschitz
Attorney for Plaintiff Tanner Pikop

11
12
13 DATED: April 22, 2025

**WILSON ELSEER MOSKOWITZ
EDELMAN & DICKER, LLP**

14
15
16 By: 

Darrell Nguyen, Esq.
John Podesta, Esq.
SF MULTIFAMILY III PROPERTY
OWNER LLC, BRICK AND TIMBER, INC

1 **~~[PROPOSED]~~ ORDER**

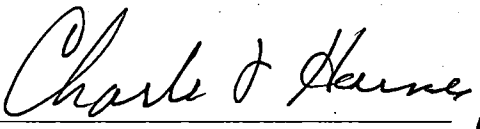
2 PURSUANT TO THE FOREGOING STIPULATION, AND GOOD CAUSE APPEARING,
3 IT IS HEREBY ORDERED:

- 4 1. Plaintiff's First, Second, Third, Sixth, Seventh, Eighth, Ninth, and Tenth Causes of
5 Action are dismissed with prejudice as to Defendants SF Multifamily III Property
6 Owner LLC and Brick and Timber, Inc.
- 7 2. Plaintiff's prayer for punitive damages is dismissed with prejudice as to those same
8 Defendants.
- 9 3. Defendants SF Multifamily III Property Owner LLC and Brick and Timber, Inc. shall
10 file their Answer to the remaining causes of action within fourteen (14) days after notice
11 of entry of this Order.

12 **IT IS SO ORDERED.**

13
14 DATED:

7/9/2025

15 
16 JUDGE OF THE SUPERIOR COURT 
17 CHARLES F. HAINES
18
19
20
21
22
23
24
25
26
27
28